

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: March 21, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE ON DISCOVERY MOTIONS

On March 20, 2025, Respondent Flexport International LLC (“Flexport”) filed Respondent’s Motion for Protective Order (“Motion”), seeking an order narrowing the deposition topics Complainant Peloton Interactive, Inc. (“Peloton”) may raise at the deposition of Flexport’s corporate representative scheduled for March 27, 2025, at 9:00 a.m.

This non-dispositive motion was filed 7 days prior to the deposition, but it does not allow adequate time under Rule 71 for Peloton to respond to the motion or for a protective order, if warranted, to then issue. 46 C.F.R. § 502.71. While not requested as part of the motion, but instead requested in an email after it filed the motion, Flexport also seeks a video conference, ostensibly to resolve the issues it raises, prior to the March 27, 2025 deposition. Flexport is reminded that “[a]ny request for action by the Commission or presiding officer must be made by motion, not by letter or email request or as part of a joint status report.” Initial Order at 4.

Complainant’s Notice of Deposition, attached to the Motion, is dated February 28, 2025. According to the Joint Status Report (“JSR”) filed pursuant to the Second Amended Scheduling Order on March 11, 2025, “the parties jointly agreed to move depositions until after the mediation” which was held on March 5, 2025. Flexport does not explain why it waited over two weeks after the March 5, 2025, mediation to file the Motion.

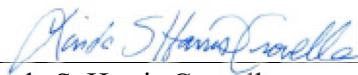
In addition to the current Motion, both parties have filed motions to compel and responses to those motions. During the video conference held on February 19, 2025, and reiterated in the Second Amended Scheduling Order, the parties were instructed to narrow the discovery issues raised in their respective motions, yet neither the JSR, nor the current Motion, indicate that the parties have made any progress in that regard. *Also see*, Initial Order at 7 (“The parties are expected to attempt to narrow the issues and to shorten the proceeding by stipulations.”).

Because of the parties’ ongoing discovery issues and failure to narrow those issues, it is necessary to conduct a status conference to discuss the outstanding motions to compel and the newly filed motion for a protective order. Accordingly, the parties are ordered to attend a video conference on Tuesday March 25 at 11:00 a.m. to address the three outstanding motions. The

parties will receive an email invitation to attend. Only one representative from each party should be designated to speak on behalf of their client; other attorneys of record will be allowed to attend, but the conference will not be delayed for their appearance. Prior to the conference, Peloton should file a brief response to the Motion (no more than 3 pages), specifically addressing:

1. The relevance to this proceeding of testimony regarding events or issues, or of documentation dated prior to 2020;
2. The relevance of contracts, negotiations with, and amounts paid to, Flexport's service providers, including motor carriers and ocean carriers;
3. The relevance of Flexport's revenue received from detention and demurrage charges assessed on imported containers;
4. The relevance of Flexport's costs for providing inland transportation on imported containers; and,
5. The relevance of Topic 21 attached to the notice of deposition (regarding Flexport's ESI systems).

Peloton must file its response to the above by March 24, 2025, at 5 pm. No other issues need to be address in the response, and it is not necessary to include a response to any other issue raised in the Motion, but a certificate of service must be included.



Linda S. Harris Crovella
Administrative Law Judge